

2022 P L C (C.S.) 282

[Lahore High Court]

Before Jawad Hassan, J

MUHAMMAD SHAFIQUE

Versus

GOVERNMENT OF PUNJAB and others

Writ Petition No.1115 of 2019, heard on 8th September, 2021.

(a) Civil service---

---Contractual employment---Scope---Petitioner sought direction to the Provincial Government to regularize his services from the date of appointment as Junior Clerk with back benefits---Validity---Appointment of petitioner was only for 89 days and it was nowhere mentioned in the appointment letter that it was a job of permanent nature or the same was likely to be permanent in future---High Court observed that it was the prerogative of the department to determine which employees were required for the extended period---No vested right existed in favour of a particular employee to insist that the department be directed to retain or regularize his services---Constitutional petition was dismissed.

Pakistan Telecommunication Company Ltd. v. Muhammad Samiullah 2021 SCMR 998 ref.

Pakistan Defence Officer's case 2013 SCMR 1707; Pakistan International Airline Corporation and others v. Tanweer-ur-Rehman and others PLD 2010 SC 676; Abdul Wahab and others v. Hahib Bank Limited and others 2013 SCMR 1383; Pakistan International Airline and others v. Noreen Naz Butt 2017 PLC (C.S.) 923; Pakistan Airline Pilots Association and others v. Pakistan International Airline and another 2019 SCMR 278; Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor 2018 PLC (C.S.) Note 1; Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others 2018 PLC (CS.) 722; Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others 2017 PLC (C.S.) 488; Mubashar Majeed v. Province of Punjab and 3 others 2017 PLC (C.S.) 940 and Pakistan Telecommunication Co. Ltd. through Chairman v. Iqbal Nasir and others PLD 2011 SC 132 rel.

Board of Intermediate and Secondary Education, D.G. Khan and another v. Muhammad Altaf and others 2018 SCMR 325; Messrs State Oil Company Limited v. Bakht Siddique and others 2018 SCMR 1181 and Board of Intermediate and Secondary Education, Faisalabad through Chairman and others v. Tanveer Sajid and others 2018 SCMR 1405 distinguished.

(b) Lahore Development Authority (Appointment and Conditions of Service) Regulations, 1978---

---Regln. 2(f)---"Employee"---Scope---Person who is appointed to a post on a project, on work charge employee or on daily wages, is not included in the definition of an "employee".

Tahir Khan for Petitioner.

Barrister Umair Khan Niazi, Additional Advocate-General.

Zubda-tul-Hussain for Respondents.

Date of hearing: 8th September, 2021.

JUDGMENT

JAWAD HASSAN, J.---By invoking the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has sought direction to the Respondents to regularize his service from the date of appointment as Junior Clerk with back benefits.

2. The facts as per petition are that the Petitioner was appointed on work charge basis on 24.08.2015 for a period of 89 days. The period of contract was extended from time to time and lastly it was extended on 01.10.2018 which expired on 28.12.2018. The Petitioners made request to the Respondents for regularization of his services which has been rejected. Hence this petition.

3. Report and parawise comments have been filed on behalf of the Respondents vehemently denying the allegations levelled in the petition and praying for dismissal of the same.

4. Learned counsel for the Petitioner inter alia contended that the act of the Respondents for not regularizing his services is against the law; that the Respondents have regularized the services of different colleagues but discriminatory treatment has been meted out with him; that the Petitioner is work charge employees and after serving three years of satisfactory service, he is entitled to be regularized. In order to support his contention, learned counsel relied on "Board of Intermediate and Secondary Education, D.G. Khan and another v. Muhammad Altaf and others" (2018 SCMR 325), "Messrs State Oil Company Limited v. Bakht Siddique and others" (2018 SCMR 1181) and "Board of Intermediate and Secondary Education, Faisalabad through Chairman and others v. Tanveer Sajid and others" (2018 SCMR 1405).

5. On the other hand, learned counsel for the Respondents Nos.3 to 5 has vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the regulations governing Petitioner's services are non-statutory and he is also not entitled to regularization as his period of contract was

expired and he is no more the employee of the Respondents; that due to non-availability of post of Junior Clerk, the Petitioner was accommodated against post of Sanitary Worker in order to avoid his unemployment; that the Petitioner did not qualify for the aforesaid post due to gap between his service because as per Regularization Policy of workers, two years continuous service is required. He has relied on "Pakistan Telecommunication Company Ltd. v. Muhammad Samiullah" (2021 SCMR 998).

6. I have heard learned counsel for the parties and gone through the available record.

7. Admittedly, the Petitioner was first appointed by the Respondents on work charge basis as Junior Clerk vide order dated 24.08.2015. The period of said work charge employment was extended from time to time vide different offer letters and lastly it expired on 28.06.2018. Although during service, the Petitioner was appointed as Sanitary Worker for a period of 89 days which also stood expired on 28.12.2018. The Petitioner after accepting the terms and conditions of his work charge employment submitted his joining report. The specific terms in the employment contract, explicitly reveal that initially this offer of appointment was only for a period of 89 days which shall be automatically terminated after the expiry of 89 days from the date of joining. Specifically, clause 2(vii) of the office order dated 24.08.2015 is important to mention which reads that "They will not claim their appointment on regular basis/regularization of their services, without fulfilling codal formalities and adoption of procedure given in LDA (Appointment and Conditions of Service) Regulations, 1978 (the "Regulations"). The counsel for the Petitioner has persistently put much emphasis that the Petitioner is entitled to regularization of services. While on the other hand, the stance of the Respondents is that the Regulations governing the Petitioner's employment are non-statutory and he does not fall within the definition of employee in terms of Section 2(f) of the Regulations. It would be advantageous to reproduce above-referred Section which defines the term "Employment" which reads as under:

"Employee" means an employee of the Authority but does not include:

- (i) A person on deputation to the Authority from the Government or Government of Pakistan or an autonomous or semi-autonomous organization, and
- (ii) A person who is employed on contract, or on work-charge basis or who is paid from contingencies".

8. It is manifestly clear from the above-mentioned provision that a person who is appointed to a post on a project, on work charge employee or on daily wages, does not include in the definition of Employee. It is not disputed by all hands that the Petitioner was appointed on work charge basis in the Project which has already expired and Section 2(f) of the Regulations draws a conceptual difference between contract employees and the one employed in projects on work-charge basis as such the Petitioner cannot take the benefit of being employee in a project under Section 2(f) of the Regulations. In Pakistan Defence Officer's case (2013 SCMR 1707) the Hon'ble Supreme Court of Pakistan has held that "Where conditions of service of employees of a statutory body are not regulated by Rules/Regulations framed under the Statute but only Rules or Instructions issued for its internal use, any violation thereof cannot normally be enforced through writ jurisdiction and they would be governed by the principle of 'Master and Servants.'" Similarly, the issue of

maintainability of writ under Article 199 of the Constitution has been discussed in detail by the Hon'ble Supreme Court in "Pakistan International Airline Corporation and others v. Tanweer-ur-Rehman and others" (PLD 2010 Supreme Court 676) and has held as follows:

"25. Thus, in view of discussion made hereinabove, we are persuaded to hold that although the appellant-Corporation is performing functions in connection with the affairs of the Federation but since the services of the respondent-employees are governed by the contract executed between both the parties, as is evident from the facts narrated hereinabove, and not by the statutory rules framed under section 30 of the Act, 1956 with the prior approval of the Federal Government, therefore, they will be governed by the principle of Master and Servant."

9. In "Abdul Wahab and others v. Habib Bank Limited and others" (2013 SCMR 1383), the Hon'ble Supreme Court has laid down that where a service grievance was agitated by a person/employee who was not governed by statutory rules of service, constitutional petition is not maintainable. The Division Bench of this Court in "Pakistan International Airline and others v. Noreen Naz Butt" (2017 PLC (C.S.) 923) has held that "the Appellant Pakistan International Airline has no statutory rules and the relationship between the Respondent and the Appellants is that of master and servant. It is an established principle that in such like cases the Constitutional petition is not maintainable".

10. Similar view was upheld by Hon'ble Supreme Court in its judgment reported as "Pakistan Airline Pilots Association and others v. Pakistan International Airline and another" (2019 SCMR 278) with the following observation:

"As the terms and conditions of employment in PIAC are admittedly not governed by any statutory provision and the employees are amenable to the Rule of "Master and Servant", Article 199 of the Constitution of Pakistan 1973 cannot be invoked. Reliance is placed on PIA Corporation v. Syed Suleman Alam Rizvi (1996 SCMR 1185), Pakistan International Airline Corporation and others v. Tanweer-ur-Rehman and others (PLD 2010 SC 676) and Abdul Wahab and others v. Habib Bank Limited and others (2013 SCMR 1383)."

11. I am of the considered view that the Petitioner, at the time of joining, has accepted all the terms and conditions of his work charge employment, cannot resile from the same at a belated stage. I fortified my view seeking guidance from the judgment passed by the Hon'ble Division Bench of this Court in case titled "Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor" (2018 PLC (C.S.) Note 1) in which it has been held as under:

"It was also made specifically clear that the Employment Contract does not confer on the Appellant any claim/right to permanent employment in the College. In the above situation, the Appellant has himself admitted all the terms and conditions of his Employment Contract, he cannot claim his regularization from this Court rather has rightly been considered to be out of service on the expiry of his contract employment as settled by the parties under the terms of the Employment Contract"

12. This Court in case titled "Muhammad Mohsin Ismail v. Managing Director Punjab

Daanish Schools and 2 others" (2018 PLC (C.S.) 722) has also held as under:

"The Respondents have invoked clause-4(b), terminated the services of the Petitioner with immediate effect entitling the Petitioner to receive one month's pay in lieu of the quit service as per terms and conditions, therefore, assertions of the learned counsel for the Petitioner that no notice has been served upon the Petitioner, cannot sustain. The law on this point has been settled by the apex Court of the country in the cases of "Government of Balochistan, Department of Health through Secretary, Civil Secretariat, Quetta v. Dr. Zahida Kakar and 43 others" (2005 SCMR 642) and "Major (R) Nisar Ali v. Pakistan Atomic Energy Commission and another" (2004 PLC (C.S.) 758).

The Hon'ble Division Bench of this Court in case titled "Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others" (2017 PLC (C.S.) 488) has held as under:

"the employee, after accepting terms and conditions of his contract employment had submitted his joining report. Service of such employee could be terminated without assigning any reason. Employee had no right to claim extension in his contract period as a vested right. Behaviour of employee remained unsatisfactory towards his superior which resulted into his termination."

14. In case titled "Mubashar Majeed v. Province of Punjab and 3 others" (2017 PLC (C.S.) 940) the Hon'ble Division Bench of this Court has also held that "employee could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by tending the contract."

15. It is an established principle that where employment is on contract, there is a relationship of master and servant and in such like cases the constitutional petition under Article 199 of the Constitution is not maintainable. Reliance is placed on "Pakistan Telecommunication Co. Ltd. through Chairman v. Iqbal Nasir and others" (PLD 2011 SC 132), wherein it was held that "Employees of Pakistan Telecommunication Corporation Limited were governed by principle of "Master and servant" and in absence of statutory rules, constitutional petitions filed by employees were not maintainable".

16. So far as the ground agitated by learned counsel for the Petitioner with regard to regularization of service is concerned, suffice it to say that the appointment was only for 89 days and it was nowhere mentioned in the appointment letter that it was a job of permanent nature or the same was likely to be permanent in future. Another stance of the Petitioner is that he approached the Respondents for regularization of his services but they did not pay any heed to his genuine request. Record reveals that admittedly the contract of the Petitioner was expired and he has not approached the Respondents for regularization of his service, hence this stance is not in line with the available record.

17. Another plea of discrimination has been pressed by the Petitioner on the ground that the Respondents have regularized other employees while he has been deprived from this favour. As the Petitioner was the contract employees of the project and it is the prerogative

of the Respondents to determine which employees are required for the extended period and stage of the project for effective implementation of the same, therefore, no vested rights exist in favour of a particular employee to insist that the Respondents should be directed to retain or regularize his services. Hence this plea is responded in negative. Moreover, it is the prerogative of the authorities to decide the matter pertaining to the continuance of service of employees or dispense with the same as per their requirement.

18. Needless to add that judgments referred by the learned counsel for the Petitioner cannot be relied upon being distinguishable from the facts and circumstances of the case as each and every case has its own merits.

19. In view of above discussion, the instant petition being devoid of any merit is accordingly dismissed.

SA/A-101/L

Petition dismissed.